

Madhukar Shukla v. State of U.P. and others

Allahabad High Court · Division Bench · 13 February 2012 · Writ-C No. 7170 of 2012 · **Writ disposed; petitioner relegated to Clause 6.5 complaint.**

HEADNOTE

A consumer seeking quashing of electricity bills on the ground that the multiplying factor was incorrect was relegated to the statutory complaint under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench declined to keep the writ pending or call for a counter-affidavit, and directed that any complaint filed in accordance with Clause 6.5 be considered and disposed of.

FACTUAL SUMMARY

Madhukar Shukla petitioned the Allahabad High Court to quash five electricity bills dated 21 May 2010, 14 June 2010, August 2011, October 2011 and 30 November 2011, alleging that the multiplying factor used by the licensee was incorrect. On 8 February 2012 the matter was listed as fresh for 13 February 2012. At that hearing, counsel for respondent nos. 2 and 4 appeared and submitted that the petitioner's remedy was a complaint before the competent authority under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

[billing-objection-to-executive-engineer-under-6.5](#)

HOLDING

Where a consumer challenges electricity bills on the ground that the multiplying factor is incorrect, the writ court will not entertain the petition in the face of the specific statutory remedy of a complaint under Clause 6.5 of the U.P. Electricity Supply Code, 2005; any such complaint filed in accordance with Clause 6.5 is to be considered and disposed of by the competent authority. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE MULTIPLYING FACTOR APPLIED TO THE PETITIONER'S BILLS WAS INCORRECT, AND WHETHER THE IMPUGNED BILLS WERE LIABLE TO BE QUASHED.

The Court did not examine the merits of the billing or multiplying-factor challenge. ¶ 1